

cantly interfere with or chill appellant's First Amendment rights. *Id.*, at 369. We agree with the District Court's conclusion.

It is, of course, true that involvement in partisan politics is closely protected by the First Amendment, *Buckley v. Valeo*, 424 U. S. 1 (1976), and that "compelled disclosure, in itself, can seriously infringe on privacy of association and belief guaranteed by the First Amendment." *Id.*, at 64. But a compelling public need that cannot be met in a less restrictive way will override those interests, *Kusper v. Pontikes*, 414 U. S. 51, 58-59 (1973); *United States v. O'Brien*, 391 U. S. 367, 376-377 (1968); *Shelton v. Tucker*, 364 U. S. 479, 488 (1960), "particularly when the 'free functioning of our national institutions' is involved." *Buckley v. Valeo*, *supra*, at 66. Since no less restrictive way than archival screening has been suggested as a means for identification of materials to be returned to appellant, the burden of that screening is presently the measure of his First Amendment claim. *Id.*, at 84. The extent of any such burden, however, is speculative in light of the Act's terms protecting appellant from improper public disclosures and guaranteeing him full judicial review before any public access is permitted. §§ 104 (a)(5), 104 (a)(7), 105 (a).²⁹ As the District Court concluded, the First Amendment

²⁹ Appellant argues that *Shuttlesworth v. Birmingham*, 394 U. S. 147, 150-151 (1969); *Cox v. Louisiana*, 379 U. S. 536 (1965); *Staub v. Baxley*, 355 U. S. 313, 319-321 (1958); *Thomas v. Collins*, 323 U. S. 516, 538-541 (1945); and *Lovell v. Griffin*, 303 U. S. 444, 452-453 (1938), support his contention that "[a] statute which vests such broad authority [with respect to First Amendment rights] is unconstitutional on its face, and the party subjected to it may treat it as a nullity even if its actual implementation would not harm him." Brief for Appellant 169. The argument is without merit. Those cases involved regulations that permitted public officials in their arbitrary discretion to impose prior restraints on expressional or associational activities. In contrast, the Act is concerned only with materials that record past activities and with a screening process guided by longstanding archival screening standards.